

Court No. - 3

Case :- WRIT - C No. - 29485 of 2011

Petitioner :- Ram Shringar

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Kalp Nath Bind, Krishna Nand Singh

Respondent Counsel :- C.S.C., Anubhav Shukla

Hon'ble Amitava Lala, J.

Hon'ble Sanjay Misra, J.

As prayed for, let it appear on Tuesday i.e. 24.05.2011 in the supplementary list of fresh cases to enable learned counsel for the respondents to obtain instructions.

Order Date :- 20.5.2011

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Respondent :- State Of U.P. And Others

Petitioner Counsel :- Kalp Nath Bind, Krishna Nand Singh

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Hon'ble Amitava Lala, J.

Hon'ble Ashok Srivastava, J.

The petitioner has contended before this Court that upon payment of Rs. 8,366/- on 15.06.2004 and Rs. 275/- on 17.06.2004 the permanent electrical disconnection was made upon payment of requisite fee for permanent disconnection. In spite of the same in the year 2011 a bill has been raised for payment of Rs. 79414/-. As we have experienced, from different cases between the private parties and the electrical authorities, that after completion of all payments, the permanent dis-connection is made. Therefore, the dues said to be recoverable in the year 2011 apparently does not appear reasonable.

Learned Counsel appearing for the electrical authority has contended that on 17.06.2004 only fee was sought for permanent disconnection but no permanent disconnection was effected from that very date. We are hesitant in accepting such contention when we find that no bill has been raised from 2004 and suddenly in the year 2011 a bill has been raised for a sum of Rs.79,414/-. Against this background, we can not direct the petitioner to pay the amount but to keep the amount in his Account separately and at the same time we direct that the dispute can be resolved by giving opportunity of hearing to the parties within a period of two months from the date of communication of this order by Consumer Grievances Redressal Forum under clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005.

Accordingly, the writ petition is disposed of, however, without imposing any cost.

Order Date :- 26.5.2011

MAA/-